

# RESIDENTIAL LEASE AGREEMENT

State of New York

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## **PARTIES AND PREMISES**

This Residential Lease Agreement is entered into as of December 1, 2024, between:

Landlord: Wythe Properties LLC, represented by Robert DeLuca, Property Manager. Mailing address: 589 Metropolitan Avenue, Brooklyn, NY 11211. Phone: (718) 555-0320. Email: rdeluca@wytheprop.com.

Tenant(s): Jesse Page and Mateo Rivera (collectively, Tenant). Current mailing address: 147 Wythe Avenue, Apt 3B, Brooklyn, NY 11249.

Premises: The residential apartment located at 147 Wythe Avenue, Apartment 3B, Brooklyn, NY 11249.

## **1. LEASE TERM**

The term of this lease shall commence on December 1, 2024, and shall expire on November 30, 2026. This Agreement shall not automatically renew. Should Tenant remain in occupancy after the expiration of the Lease Term without a written renewal agreement, such holdover tenancy shall be governed by applicable New York State law.

## **2. RENT**

Tenant agrees to pay Landlord a monthly rental of Two Thousand Four Hundred Dollars (\$2,400.00), due on the first day of each calendar month. Rent shall be paid by check or electronic transfer to the account designated by Landlord. A late fee of \$100.00 shall be assessed for payments received after the fifth (5th) day of the month.

## **3. SECURITY DEPOSIT**

Tenant has deposited with Landlord the sum of Two Thousand Four Hundred Dollars (\$2,400.00) as a security deposit. The security deposit shall be held in accordance with New York State law and returned to Tenant within fourteen (14) days after the end of the tenancy, less any lawful deductions for damage beyond normal wear and tear or unpaid rent.

## **4. UTILITIES**

Landlord shall provide heat and hot water. Tenant shall be responsible for payment of electricity and internet service. Tenant shall establish accounts directly with the applicable utility providers. Gas service is included in building heating and hot water; no separate gas service is required.

## **5. OCCUPANCY**

The Premises are to be occupied solely as a private residence. Authorized occupants are Jesse Page and Mateo Rivera. No additional persons may occupy the Premises as permanent residents without prior written consent of Landlord. Guests may stay for periods not to exceed fourteen (14) consecutive days without Landlord consent.

## **6. PET POLICY**

No pets of any kind are permitted in the Premises without prior written consent from Landlord. Unauthorized pets shall constitute a material breach of this Agreement. Any pet approved in writing by Landlord may be subject to an additional pet deposit as agreed at the time of approval.

#### **7. SUBLETTING**

Tenant may not sublet the Premises or any portion thereof, nor assign this Agreement, without the prior written consent of Landlord. Unauthorized subletting, including short-term rental arrangements through any platform or service, shall constitute a material breach of this Agreement.

#### **8. LANDLORD ENTRY**

Landlord shall provide at least twenty-four (24) hours advance written or verbal notice before entering the Premises for inspection, repairs, or showing the unit, except in cases of emergency. Tenant agrees to permit reasonable access during normal business hours for these purposes.

#### **9. TENANT MAINTENANCE OBLIGATIONS**

Tenant shall keep the Premises in a clean, sanitary, and undamaged condition. Tenant shall not make alterations, additions, or improvements to the Premises without prior written consent of Landlord. Tenant shall immediately notify Landlord of any conditions requiring repair. Minor repairs (defined as repairs costing under \$50.00) may be the responsibility of Tenant as agreed.

#### **10. NOISE AND NUISANCE**

Tenant shall not create or allow conditions that unreasonably disturb other tenants or neighbors, including excessive noise between the hours of 10:00 PM and 8:00 AM. Tenant shall comply with all building rules and applicable local ordinances.

#### **11. SMOKING**

Smoking of any substance is strictly prohibited within the Premises and in all common areas of the building. Violation of this provision shall constitute a material breach.

#### **12. RENTERS INSURANCE**

Tenant is strongly advised to obtain renters insurance for personal property. Landlord insurance does not cover Tenant personal belongings. Landlord shall not be liable for loss or damage to Tenant personal property except where caused by Landlord negligence.

#### **13. DEFAULT AND REMEDIES**

If Tenant fails to pay rent when due or otherwise materially breaches this Agreement, Landlord may pursue all remedies available under New York State law, including but not limited to commencement of eviction proceedings. Tenant shall have a reasonable cure period as provided by applicable law.

#### **14. GOVERNING LAW**

This Agreement is governed by the laws of the State of New York. Any disputes shall be resolved in the courts of Kings County, New York. This Agreement shall be construed in accordance with the New York Residential Landlord-Tenant Law.

#### **15. ENTIRE AGREEMENT**

This Agreement constitutes the entire agreement between the parties regarding the Premises and supersedes all prior negotiations, representations, and agreements. This Agreement may only be modified by a written amendment signed by both parties.

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IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

**LANDLORD**

Wythe Properties LLC  
589 Metropolitan Avenue  
Brooklyn, NY 11211

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Robert DeLuca, Property Manager  
Date: December 1, 2024

**TENANT(S)**

Jesse Page  
147 Wythe Avenue, Apt 3B  
Brooklyn, NY 11249

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Jesse Page  
Date: December 1, 2024

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Mateo Rivera  
Date: December 1, 2024